



WORDING ENHANCEMENT — MEDIA & ENTERTAINMENT

TMHCC Gap-Fill & Wording Enhancement Strategy

Strategic, action-focused recommendations to make the TMHCC Media & Music Combined base wording more holistic, clearer and demonstrably market-leading.

Wordings reviewed

- Benchmarked against all five competitor wordings:
- Tysers (Zurich), Yutree (AXA), Liberty, Allianz and AXA XL (XL Catlin) — now incorporated

Companion to the Full Coverage Comparison. Every recommendation is evidence-based — supported by at least one competitor wording.

Recommendations are commercial proposals only and are subject to final TMHCC legal / underwriting sign-off.

1 Executive summary

The Full Coverage Comparison confirms that TMHCC already offers the broadest media & entertainment package in the peer group — the only wording with all fifteen sections, and the only one with Loss of Licence, Legal Expenses, Management Liability and a genuine standalone Cyber section. The purpose of this document is not to broaden recklessly, but to close the small number of places where a competitor genuinely shows more, so that TMHCC can present a tick on virtually every comparison row.

What moves the needle most

- **1.** Add a Personal Accident & Business Travel option — the only whole section two competitors offer that TMHCC does not.
- **2.** Offer a rated worldwide / US-Canada territory option for Media Liability — Tysers PI is worldwide.
- **3.** Add a Distributors & Purchasers extension and journalistic source-protection costs to Media Liability (both Tysers).
- **4.** Clarify where criminal / regulatory defence costs live (S12 vs S13/S14) — a near nil-cost fix that removes an apparent gap.

Discipline retained: TMHCC should KEEP its more restrictive positions on patents, communicable disease and default US/Canada jurisdiction. These are deliberate, defensible underwriting choices, not gaps — the worldwide/US-Canada exposure is best offered as a rated option rather than given away.

Round 7 — implementation status (final wording)

This edition aligns the strategy with the FINAL updated TMHCC wording. The following amendments were applied to the wording as fresh tracked changes (from a clean accepted baseline); Section 12 items are held for sign-off and are NOT in the wording.

Item	Final wording position	Status	Sign-off
Admission-of-Liability claims condition	Blanket 'condition precedent' replaced with an ordinary condition + prejudice qualifier (Policy Claims Conditions, Sections 1–11).	Implemented (tracked)	No
Proof of Ownership & Value	New headed claims condition added to Policy Claims Conditions (Sections 1–11) — item-level evidence for theft/loss of high-value & agreed-value items.	Implemented (tracked)	No
Gap 8 — ICOW / Book Debts (S3)	ICOW & AICOW already named; 'Accounts Receivable' head re-labelled '(Book Debts)'.	Implemented (tracked)	No
Gap 10 — Computer/IT Breakdown	Confirmed already covered — S1 IT-Property Breakdown (≡ Yutree Computer Breakdown) + S2 M&E Breakdown optional ext (≡ Yutree general). No change.	Confirmed — no change	No
Section 15 title	Standardised to 'CyberGuard™ (Cyber Liability)' in body heading and contents.	Implemented (tracked)	Confirm label
Gap 2 — Worldwide Media Liability	Worldwide-ex-US/Canada by default today; clean Schedule-selectable worldwide + USA/Canada option drafted.	Held — S12 sign-off	Yes
Section 12 enhancements (7)	Distributors & purchasers, criminal/regulatory defence, source-protection, representation costs, asbestos/pollution write-back, KC clause, Media Material definition.	Held — S12 sign-off	Yes

How to read the cards: Each recommendation card below now carries the exact policy location, copy-paste-ready wording, priority, underwriting impact, legal sign-off (Yes/No) and whether it is implemented now or parked — so the wording can be updated easily later.

2 Strategic objective

To evolve the TMHCC base wording from 'already the broadest' to 'demonstrably market-leading on every row' — by:

- filling the few genuine coverage gaps a competitor exposes;
- adding targeted exclusion write-backs where they are commercially useful and underwriting-acceptable;
- sharpening definitions and conditions for clarity; and
- doing all of the above without diluting TMHCC's disciplined risk selection or its protective claims architecture.

Each recommendation below states the competitor evidence, the current TMHCC position, the proposed action and the underwriting/claims impact, with a priority rating.

3 Priority gap-fill recommendations

All recommendations at a glance, ordered by priority.

#	Recommendation	Evidence (competitor)	Action type	Priority
1	Add a Personal Accident & Business Travel extension/section	Tysers (extensive); Yutree (PA assault)	Add section/extension	High
2	Offer a worldwide / US-Canada territory option for Media Liability	Tysers (PI worldwide)	Add rated option	High
3	Broaden criminal / regulatory defence-costs in Media Liability (or signpost S13/S14)	Tysers (statutory defence GBP 1m); Yutree (criminal prosecution defence GBP 250k)	Clarify / cross-ref	Medium-High
4	Add a Distributors & Purchasers extension to Media Liability	Tysers (clause 8.7, up to 5x limit)	Add extension	Medium
5	Add journalistic source-protection costs to Media Liability	Tysers (clause 8.13)	Add extension	Medium
6	Add representation costs at investigations/inquiries to Media Liability	Tysers (clause 8.15, GBP 25k)	Add extension	Medium
7	Consider a limited asbestos / pollution professional-duty write-back in PI	Tysers (asbestos professional-duty write-back, GBP 1m, ex-BI); Yutree (pollution write-back for own negligence)	Add write-back	Medium
8	Make Increased Cost of Working / Book Debts explicit in BI	Allianz (ICOW; Book Debts)	Clarify wording	Medium
9	Adopt a King's Counsel dispute-resolution clause in Media Liability	Yutree (KC clause)	Amend condition	Low-Medium
10	Confirm/clarify computer-breakdown cover within S1/S2	Yutree (standalone Computer Breakdown section)	Clarify wording	Low-Medium
11	Add a defined term for 'Media Material'	Tysers (defines Media Material)	Amend definition	Low
12	LEAVE UNCHANGED — patents, communicable disease and default US/Canada exclusion	Tysers (patents, worldwide); AXA XL (supports restriction)	Leave unchanged	Low

4 Coverage gaps to consider filling

Detailed recommendation cards, in priority order.

Gap 1. Add a Personal Accident & Business Travel extension/section [Priority: High] [Round 7: Parked — NOT being added]

Competitor(s)	Tysers (extensive); Yutree (PA assault)
What the competitor does	Tysers provides a full personal-accident and business-travel section (directors/employees/visitors, family travel, assault); Yutree covers personal-accident assault.
Current TMHCC position	No standalone PA / business-travel section within the 15-section structure.
Gap / opportunity	Entertainment clients (crew, artists, touring personnel) routinely expect PA/business-travel; its absence is visible on a section-by-section comparison.
Recommended action	Add new optional extension/section (PA & Business Travel) — capacity-permitting.
Exact policy location	Would require a new optional Section / extension after Section 8.
Copy-paste-ready wording	Personal Accident & Business Travel (Optional Section) — If stated as operative in the Schedule, the Insurer will pay the benefits stated in the Schedule to an Insured Person who sustains bodily injury caused by accidental, violent, external and visible means during the Period of Insurance, in accordance with the Benefit Schedule, age limits and hazardous-activity provisions stated therein.
Priority	High
Underwriting impact	Medium — control via benefit schedule, age limits, hazardous-activity carve-outs.
Legal sign-off required	Yes
Implemented now or parked	Not implemented — commercial decision (client direction)
Commercial benefit	Closes a whole-section gap; lets TMHCC show a tick on a row two competitors win.
Legal / underwriting review	Confirm capacity/appetite for PA & travel; draft benefit schedule and assault definition.

Final position: NOTE: Personal Accident is NOT being added in this round. This is distinct from the existing Personal Assault cover under Section 8 (Money), Sub-Section 2, which is retained as-is.

Gap 2. Offer a worldwide / US-Canada territory option for Media Liability [Priority: High] [Round 7: Parked — Section 12 sign-off list]

Competitor(s)	Tysers (PI worldwide)
What the competitor does	Tysers PI/E&O applies worldwide with no jurisdiction exclusion.
Current TMHCC position	S12 limited to Schedule Geographical Limits; excludes actions brought/governed outside the stated Jurisdiction (default ex-US/Canada).
Gap / opportunity	Media clients with global digital distribution can be exposed to US/Canada actions; TMHCC's default looks narrower on the matrix.
Recommended action	Add an optional worldwide (incl. or excl. US/Canada) write-back to the Geographical Limits / Legal Action exclusion, rated accordingly.
Exact policy location	Section 12 (Media Liability), as an Optional Extension following the 'Legal Action' / 'Geographical Limits' exclusions (p.73+).
Copy-paste-ready wording	Worldwide Territory and Jurisdiction (Optional) This Optional Extension applies only if stated as operative in the Schedule. Where stated as operative, the Geographical Limits applicable to this Section are amended to anywhere in the world and the Jurisdiction applicable to this Section is amended to worldwide, and the exclusions of claims brought, or in which the governing law is contended to be, outside the Jurisdiction shall not apply. Cover in respect of claims brought in, or determined under the laws of, the United States of America or Canada (or any territory or protectorate thereof) applies only if "USA/Canada Jurisdiction" is additionally stated as operative in the Schedule.
Priority	High
Underwriting impact	High if US/Canada included — rate, sub-limit, higher excess, defence-cost caps; keep ex-US/Canada as default.
Legal sign-off required	Yes
Implemented now or	Not implemented in wording (Section 12 — legal/UW sign-off required)

Indicative wording comparison — broking reference only. Refer to the full policy wordings. Subject to TMHCC legal/underwriting sign-off.

parked	
Commercial benefit	Converts a 'partial' to a 'covered' for global clients without changing the default risk appetite.
Legal / underwriting review	Draft optional endorsement; confirm reinsurance treaty territory.

Final position: FINAL POSITION (Gap 2): The wording already provides worldwide-excluding-USA/Canada cover by DEFAULT via the 'Jurisdiction' definition (worldwide but excluding the USA and Canada where the Schedule is silent), bounded by the Schedule 'Geographical Limits' and the Section 12 'Legal Action' exclusion. There is NOT yet a single, clean, Schedule-selectable 'Worldwide (incl. USA/Canada)' switch. The optional clause above supplies that switch and a separate USA/Canada selectable. Held in the Section 12 sign-off list — not applied to the wording.

Gap 3. Broaden criminal / regulatory defence-costs in Media Liability (or signpost S13/S14)

[Priority: Medium-High] [Round 7: Parked — Section 12 sign-off list]

Competitor(s)	Tysers (statutory defence GBP 1m); Yutree (criminal prosecution defence GBP 250k)
What the competitor does	Fund defence of statutory/criminal proceedings (Bribery, Corporate Manslaughter, H&S, CDM) arising from the business.
Current TMHCC position	S12 funds only Data-Protection defence costs (GBP 250k); broader criminal/regulatory defence sits in S13 Legal Expenses and S14 Management Liability.
Gap / opportunity	On a section-by-section read of S12 alone, TMHCC looks narrower.
Recommended action	Either add a modest criminal/regulatory defence-costs extension to S12, or add an express cross-reference noting that statutory/criminal defence is provided under S13/S14.
Exact policy location	Section 12 — either a new sub-limited extension, or a cross-reference note after the Defence Costs provisions (p.73+).
Copy-paste-ready wording	Criminal and Regulatory Defence Costs (Clarification / Optional) — For the avoidance of doubt, the defence of statutory, regulatory or criminal proceedings arising from the Business (other than the Data Protection defence costs expressly provided in this Section) is addressed under Section 13 (Commercial Legal Expenses) and Section 14 (Management Liability). Where stated as operative in the Schedule, this Section will in addition indemnify the Insured for defence costs incurred with the Insurer's prior written consent up to GBP [] in respect of such proceedings.
Priority	Medium-High
Underwriting impact	Low–medium — cross-reference is essentially nil-cost; any S12 sub-limit should be modest.
Legal sign-off required	Yes
Implemented now or parked	Not implemented (Section 12 — sign-off)
Commercial benefit	Removes an apparent gap with minimal added exposure.
Legal / underwriting review	Confirm S13/S14 triggers; draft cross-reference wording.

Gap 4. Add a Distributors & Purchasers extension to Media Liability [Priority: Medium]

[Round 7: Parked — Section 12 sign-off list]

Competitor(s)	Tysers (clause 8.7, up to 5x limit)
What the competitor does	Extends indemnity to purchasers/co-producers/distributors of the insured's media material, subject to control-of-defence and notice conditions.
Current TMHCC position	No equivalent extension.
Gap / opportunity	Production/distribution clients expect their distribution chain to be protected.
Recommended action	Add an optional Distributors & Purchasers extension with a capped aggregate (e.g. a multiple of the limit) and clear conditions.
Exact policy location	Section 12, new Optional Extension within the Extensions block (p.73+).
Copy-paste-ready wording	Distributors and Purchasers (Optional) — The indemnity provided by this Section extends to any distributor, licensee, co-producer or purchaser of the Insured's media material for their liability arising from that material, provided that: (a) the Insurer's total liability for all such parties shall not exceed the multiple of the Limit of Liability stated in the Schedule; (b) the claim is first made within 36 months of the relevant supply; and (c) the Insurer retains control of the defence and settlement of any such claim.
Priority	Medium
Underwriting impact	Medium — 36-month window, certificate, control of defence, capped aggregate (mirror Tysers cl. 8.7).

Indicative wording comparison — broking reference only. Refer to the full policy wordings. Subject to TMHCC legal/underwriting sign-off.

Legal sign-off required	Yes
Implemented now or parked	Not implemented (Section 12 — sign-off)
Commercial benefit	Strong differentiator for production-house clients.
Legal / underwriting review	Draft extension; confirm acceptable aggregate multiple.

Gap 5. Add journalistic source-protection costs to Media Liability [Priority: Medium] [Round 7: Parked — Section 12 sign-off list]

Competitor(s)	Tysers (clause 8.13)
What the competitor does	Funds legal costs to challenge a subpoena/court order requiring disclosure of a source.
Current TMHCC position	Not provided.
Gap / opportunity	Broker-sensitive for editorial, news and publishing clients.
Recommended action	Add a modest sub-limited source-protection costs extension (insurer consent; reasonable prospects test).
Exact policy location	Section 12, new sub-limited Optional Extension (p.73+).
Copy-paste-ready wording	Journalistic Source Protection Costs (Optional) — The Insurer will pay, up to the sub-limit stated in the Schedule, legal costs reasonably incurred with the Insurer's prior written consent in resisting any subpoena, application or court order that would require the Insured to disclose a confidential journalistic source, provided there are reasonable prospects of successfully resisting such disclosure.
Priority	Medium
Underwriting impact	Low — small sub-limit; consent and prospects-of-success conditions (mirror Tysers cl. 8.13).
Legal sign-off required	Yes
Implemented now or parked	Not implemented (Section 12 — sign-off)
Commercial benefit	Distinctive, low-frequency, brand-positive cover.
Legal / underwriting review	Draft sub-limited extension.

Gap 6. Add representation costs at investigations/inquiries to Media Liability [Priority: Medium] [Round 7: Parked — Section 12 sign-off list]

Competitor(s)	Tysers (clause 8.15, GBP 25k)
What the competitor does	Funds representation at official examinations/inquiries that could give rise to a claim.
Current TMHCC position	Provided only via Data-Protection defence; otherwise absent.
Gap / opportunity	Regulators increasingly investigate content/advertising.
Recommended action	Add a sub-limited representation-costs extension (e.g. GBP 25k).
Exact policy location	Section 12, new sub-limited Optional Extension (p.73+).
Copy-paste-ready wording	Representation Costs at Investigations and Inquiries (Optional) — The Insurer will pay, up to GBP 25,000 in the aggregate, the reasonable costs of legal representation incurred with the Insurer's prior written consent at any official examination, investigation or inquiry into a matter that could give rise to a claim under this Section.
Priority	Medium
Underwriting impact	Low — small sub-limit (mirror Tysers cl. 8.15).
Legal sign-off required	Yes
Implemented now or parked	Not implemented (Section 12 — sign-off)
Commercial benefit	Cheap, visible enhancement.
Legal / underwriting review	Draft sub-limited extension; align with S13/S14.

Gap 7. Consider a limited asbestos / pollution professional-duty write-back in PI [Priority: Medium] [Round 7: Parked — Section 12 sign-off list]

Competitor(s)	Tysers (asbestos professional-duty write-back, GBP 1m, ex-BI); Yutree (pollution write-back for own negligence)
What the competitor does	Cover PI liability that arises purely from negligent professional advice touching

	asbestos/pollution — not the contamination itself.
Current TMHCC position	S12 excludes asbestos and pollution outright.
Gap / opportunity	Genuine E&O exposures (e.g. negligent advice/specification) fall in the exclusion gap.
Recommended action	Consider a narrow, sub-limited write-back limited to negligent advice, expressly excluding bodily injury and the contamination itself.
Exact policy location	Section 12 — narrow write-back to the asbestos/pollution exclusions (p.73+).
Copy-paste-ready wording	Professional Duty Write-back (Asbestos / Pollution) (Optional) — Notwithstanding the asbestos and pollution exclusions of this Section, the Insurer will indemnify the Insured, up to the sub-limit stated in the Schedule, for liability arising solely from negligent professional advice, design or specification in connection with asbestos or pollution, but excluding any liability for bodily injury and any liability for the cost of the contamination, remediation or clean-up itself.
Priority	Medium
Underwriting impact	Medium — ring-fence to negligent advice; keep BI and contamination/clean-up excluded; tight cap.
Legal sign-off required	Yes
Implemented now or parked	Not implemented (Section 12 — sign-off; careful drafting essential)
Commercial benefit	Closes a defensible E&O gap without taking environmental risk.
Legal / underwriting review	Careful drafting essential — keep BI and contamination excluded.

Gap 8. Make Increased Cost of Working / Book Debts explicit in BI [Priority: Medium] [Round 7: Implemented now (tracked change)]

Competitor(s)	Allianz (ICOW; Book Debts)
What the competitor does	Presents ICOW/AICOW and Book Debts as named, discrete cover heads (AXA XL also names Rent Receivable/Turnover).
Current TMHCC position	BI cover exists (S3) but ICOW/book-debts may be implicit.
Gap / opportunity	Presentational — competitors show more named BI heads.
Recommended action	Confirm and, if needed, name ICOW/AICOW and book-debts heads expressly in S3.
Exact policy location	Section 3 (Business Interruption), Definitions and Basis of Settlement — 'Accounts Receivable' head (p.38+).
Copy-paste-ready wording	Accounts Receivable (Book Debts) — [head re-labelled]. Increase in Cost of Working and Additional Increase in Cost of Working are already named, discrete Basis-of-Settlement heads in Section 3; the 'Accounts Receivable' head has been labelled '(Book Debts)' so the book-debts cover is unmistakable for like-for-like comparison with Allianz/AXA XL.
Priority	Medium
Underwriting impact	Nil — presentational clarification only; no broadening of cover.
Legal sign-off required	No
Implemented now or parked	Implemented now
Commercial benefit	Improves like-for-like BI presentation.
Legal / underwriting review	Confirm S3 scope; adjust headings only.

Final position: FINAL POSITION (Gap 8): Section 3 already names 'Increase in Cost of Working' and 'Additional Increase in Cost of Working' as discrete settlement heads, and provides book-debts cover under 'Accounts Receivable'. The only refinement required was presentational: the 'Accounts Receivable' head is now labelled '(Book Debts)' (tracked change, definition + basis of settlement). No cover broadened; no sign-off required.

Gap 9. Adopt a King's Counsel dispute-resolution clause in Media Liability [Priority: Low-Medium] [Round 7: Parked — Section 12 sign-off list]

Competitor(s)	Yutree (KC clause)
What the competitor does	On a defence/settlement dispute, the matter is referred to a mutually-agreed King's Counsel whose view binds both parties.
Current TMHCC position	Relies on a general mediation/dispute condition.
Gap / opportunity	Drafting-clarity opportunity; reduces coverage friction.
Recommended action	Add a KC-determination clause to S12 defence/settlement provisions.

Indicative wording comparison — broking reference only. Refer to the full policy wordings. Subject to TMHCC legal/underwriting sign-off.

Exact policy location	Section 12 — within the Defence and Settlement / dispute provisions (p.73+).
Copy-paste-ready wording	King's Counsel Determination (Optional) — If the Insured and the Insurer disagree as to whether any claim should be contested, the dispute shall be referred to a King's Counsel to be mutually agreed (or, failing agreement, nominated by the President of the Bar Council), whose determination shall be binding. The costs of the reference shall be at the discretion of the King's Counsel.
Priority	Low-Medium
Underwriting impact	Low — procedural; confirm cost-allocation wording (mirror Yutree KC clause).
Legal sign-off required	Yes
Implemented now or parked	Not implemented (Section 12 — sign-off)
Commercial benefit	Signals fair-claims handling.
Legal / underwriting review	Standard clause; confirm cost-allocation wording.

Gap 10. Confirm/clarify computer-breakdown cover within S1/S2 [Priority: Low-Medium] [Round 7: Already covered — no wording change]

Competitor(s)	Yutree (standalone Computer Breakdown section)
What the competitor does	Dedicated first-party computer-breakdown section.
Current TMHCC position	IT/breakdown consolidated within S1/S2 (per prior drafting).
Gap / opportunity	Presentational — a competitor shows a named breakdown section.
Recommended action	Add an explicit 'computer/IT breakdown' sub-heading or signpost within S1/S2.
Exact policy location	Section 1 (Premises) Definitions & The Cover (p.23+); Section 2 'Mechanical and Electrical Breakdown' Optional Extension (p.31+); Section 3 ICOW (Computers) (p.38+).
Copy-paste-ready wording	(Optional signpost, NOT implemented) — 'Computer / IT Breakdown: cover for Breakdown of Information Technology Property is provided under Section 1 (Business "All Risks") and, where away from the Premises, under the Mechanical and Electrical Breakdown Optional Extension of Section 2; consequential loss is dealt with under Section 3.' Not added so as not to imply new cover or alter the existing structure.
Priority	Low-Medium
Underwriting impact	Nil — cover already present; any change would be presentational only.
Legal sign-off required	No
Implemented now or parked	Confirmed — no change (avoids redundancy/over-broadening)
Commercial benefit	Removes a perceived gap.
Legal / underwriting review	Confirm breakdown is within S1/S2; add signpost.

Final position: FINAL POSITION (Gap 10): Confirmed against the live wording. Section 1 (Premises) DEFINES 'Breakdown' and covers/pays Information Technology Property 'Breakdown' (definition, insured event 'The Cover', and Basis of Settlement) — this is the old Section 4 IT-Property breakdown, preserved faithfully. Section 2 contains a 'Mechanical and Electrical Breakdown' OPTIONAL EXTENSION with its own broad Breakdown definition (all Property Insured, not IT-only). vs YUTREE: TMHCC matches Yutree on BOTH of Yutree's breakdown covers — Section 1 IT-Property Breakdown ≡ Yutree's dedicated Computer Breakdown section, and Section 2 M&E Breakdown ≡ Yutree's general 'Mechanical and electrical breakdown cover'. See Reviewer Notes for two points to confirm: (a) the brief's assumption that the IT-Property breakdown sits 'in Section 2' is not correct — it is in Section 1 (premises) and Section 3 (BI computers); (b) narrowing Section 2 to 'IT-only' would REMOVE existing optional cover and make TMHCC narrower than Yutree — not done without explicit instruction and sign-off.

Gap 11. Add a defined term for 'Media Material' [Priority: Low] [Round 7: Parked — for consideration]

Competitor(s)	Tysers (defines Media Material)
What the competitor does	Defines the subject-matter of cover precisely.
Current TMHCC position	Uses 'data, text, sounds, images or similar content' descriptively.
Gap / opportunity	Minor drafting-clarity opportunity.

Indicative wording comparison — broking reference only. Refer to the full policy wordings. Subject to TMHCC legal/underwriting sign-off.

Recommended action	Consider adding a 'Media Material' (or 'Content') definition.
Exact policy location	General Definitions or Section 12 Definitions (p.73+).
Copy-paste-ready wording	Media Material (Definition) — 'Media Material means any data, text, sounds, images, advertising, film, video, audio, broadcast, publication, website or other content created, produced, published, distributed, broadcast or disseminated by or on behalf of the Insured in the course of the Business.'
Priority	Low
Underwriting impact	Nil — drafting clarity only.
Legal sign-off required	No
Implemented now or parked	Not implemented — optional drafting polish
Commercial benefit	Sharper wording.
Legal / underwriting review	Optional drafting polish.

Gap 12. LEAVE UNCHANGED — patents, communicable disease and default US/Canada exclusion [Priority: Low] [Round 7: No change — deliberate restriction]

Competitor(s)	Tysers (patents, worldwide); AXA XL (supports restriction)
What the competitor does	Tysers covers patents and is worldwide; AXA XL by contrast excludes terrorism and punitive damages ABSOLUTELY and carries a broad communicable-disease and cyber exclusion — evidencing that disciplined restrictions are market-normal.
Current TMHCC position	Excludes patents; carries a broad communicable-disease exclusion; default ex-US/Canada jurisdiction.
Gap / opportunity	These are deliberate, defensible restrictions — not true gaps.
Recommended action	Leave unchanged (offer US/Canada only as a rated option per rec. 2).
Exact policy location	Section 12 exclusions / 'Jurisdiction' definition.
Copy-paste-ready wording	No wording change. Retain the patents exclusion, the broad communicable-disease exclusion and the default worldwide-excluding-USA/Canada jurisdiction. These are deliberate, defensible underwriting positions.
Priority	Low
Underwriting impact	Retaining these protects TMHCC — broadening would materially increase volatility.
Legal sign-off required	No
Implemented now or parked	No change recommended (document rationale)
Commercial benefit	Protects portfolio profitability and reinsurance terms.
Legal / underwriting review	No change recommended; document rationale.

5 Exclusion write-backs to consider

Where a competitor narrows an exclusion or writes cover back, and whether TMHCC should follow. Exclusions are not softened lightly — each note states the underwriting view.

Exclusion area	Competitor	What they do	TMHCC position	Recommended TMHCC action	Priority
Asbestos (PI)	Tysers	Professional-duty write-back (GBP 1m, ex-BI)	TMHCC excludes asbestos in PI	Consider narrow negligent-advice write-back (ex-BI, ex-contamination)	Medium
Pollution (PI)	Yutree	Write-back for insured's own negligent act/error/omission	TMHCC excludes pollution in PI	Consider narrow negligent-advice write-back	Medium
USA/Canada jurisdiction (PI)	Tysers	No jurisdiction exclusion (worldwide)	TMHCC excludes actions outside Jurisdiction (default ex-US/Canada)	Offer rated worldwide/US-Canada option; keep default	High
Patent infringement (PI)	Tysers	Patents covered within IP	TMHCC excludes patents	At most a limited defence-costs write-back; otherwise leave excluded	Low
Cyber/data exclusion vs PI	(TMHCC favourable)	Yutree strips cyber-related PI; AXA XL blanket cyber exclusion	TMHCC dis-applies cyber/date exclusion to S12–15	No change — retain as a TMHCC strength	n/a
Fines/penalties (PI)	(TMHCC favourable)	TMHCC writes back defamation awards & permitted punitive; AXA XL excludes absolutely	TMHCC already favourable	No change — retain	n/a

Underwriting stance: Adopt the asbestos and pollution write-backs ONLY in a narrow, sub-limited, negligent-advice form that keeps bodily injury and the contamination/clean-up itself excluded. Offer worldwide/US-Canada as a rated option. Do NOT write patents back beyond, at most, limited defence costs.

6 Definitions to consider expanding or clarifying

Definition	Competitor benchmark	Current TMHCC	Proposed clarification	Priority
'Media Material' / 'Content'	Tysers defines 'Media Material'	TMHCC uses 'data, text, sounds, images or similar content' descriptively.	Add a defined term to sharpen the subject-matter of S12 cover.	Low
Territory — 'Geographical Limits' / 'Jurisdiction'	Tysers (worldwide)	Default worldwide ex-US/Canada; Legal Action exclusion bars actions outside Jurisdiction.	Define a clear optional worldwide / incl.-US-Canada basis selectable in the Schedule.	High
'Cyber act' / 'Computer System' / 'Virus'	Yutree defines 'Cyber act'	TMHCC defines 'Computer System' and 'Virus' within S12 and operates a separate CyberGuard section.	Align S12 cyber definitions with the CyberGuard section to avoid overlap/ambiguity.	Medium
'Employee' / freelancers & contractors	Tysers; Yutree (broad employee defs)	TMHCC S12 includes self-employed/freelance under direction & control — already broad.	Confirm freelancers/loaned staff captured consistently across sections.	Low

7 Conditions / claims obligations to consider improving

- **Adopt:** Adopt a King's Counsel dispute-resolution clause in S12 (as Yutree) to give clients certainty on defence/settlement disputes — procedural, low risk.
- **Clarify:** Add an express cross-reference in S12 confirming that statutory / criminal-defence cover is provided under S13 (Legal Expenses) and S14 (Management Liability).
- **Clarify:** Add a signpost in S1/S2 confirming computer / IT breakdown is included (Yutree shows a named Computer Breakdown section).
- **Done:** Round 7 — the blanket Admission-of-Liability CONDITION PRECEDENT has been replaced with an ordinary condition + prejudice qualifier (aligns with the competitor market). The Sections 1–11 claims-notification clause is NOT a condition precedent (it reads 'will notify... as soon as practicable') and was left as-is.
- **Retain:** RETAIN the section-level claims-notification CPs (S12/S13/S14/S15), the police/theft-reporting CP, the unattended-vehicle / premises-security CPs, the rushes/originals/negatives storage CPs and the risk-improvement/maintenance CPs — these are normal and protective.
- **Done:** Round 7 — a new 'Proof of Ownership and Value' claims condition was added (item-level, reasonable, not a blanket forfeiture or condition precedent).
- **Retain:** RETAIN the detailed S12 computer-security conditions — strong risk control; ensure they are workable for SME media clients.

8 Limits and sub-limits to consider reviewing

Sub-limit	TMHCC today	Competitor benchmark	Recommendation
Criminal / statutory defence (S12)	DP defence only (GBP 250k)	Tysers GBP 1m; Yutree GBP 250k	Add a modest S12 criminal/regulatory defence sub-limit OR cross-refer to S13/S14.
Representation costs (S12)	Via DP defence only	Tysers GBP 25k	Introduce a GBP 25k representation-costs sub-limit.
Distributors & purchasers (S12)	Not offered	Tysers up to 5x limit	If adopted, cap the aggregate (e.g. a defined multiple of the limit).
Loss of documents (S12)	Per Schedule	Tysers GBP 1m	Confirm an explicit sub-limit for parity of presentation.
Virus transmission (S12)	GBP 500k	Tysers GBP 250k	TMHCC already higher — retain as a strength.

9 Market-leading wording opportunities

Evidence-based positioning supported by the comparison and the source wordings. Personal Accident is NOT included (see distinction below).

Standalone, built-in specialist cover (not bolt-ons)

Current TMHCC position	TMHCC is the only wording in the peer group that carries genuine, free-standing specialist sections: Cyber (Section 15 — CyberGuard™ (Cyber Liability)), Commercial Legal Expenses (Section 13), Management Liability (Section 14), Loss of Licence (Section 10) and Production Indemnity 'All Risks' (Section 11).
Competitor support	Liberty, Allianz and AXA XL carry NONE of these specialist sections; Tysers and Yutree carry only some. No competitor wording reviewed offers all of them.
Clause / location	Sections 10, 11, 13, 14, 15 (contents p.67–103).
Recommended action / wording	Position the wording as 'standalone cyber, legal expenses, management liability, loss of licence and production indemnity built in — not bolt-ons.'
Underwriting risk	Nil — positioning of cover that already exists.
Legal sign-off required	No (positioning only).

Reputation management & reputational-harm support

Current TMHCC position	Section 12 (Media Liability) ALREADY provides Reputation Management (up to GBP 250,000) and Withdrawal of Content (up to GBP 250,000) as standard, plus the general duty-to-mitigate provisions.
Competitor support	Yutree offers Reputation management costs cover (PR consultant / crisis) and Withdrawal of consent cover. TMHCC therefore MATCHES Yutree on reputation support; Liberty, Allianz and AXA XL offer none.
Clause / location	Section 12 — 'Reputation Management' and 'Withdrawal of Content' clauses (contents p.73+).
Recommended action / wording	Highlight reputation management + withdrawal-of-content as STANDARD. OPTIONAL uplift (sign-off): increase the GBP 250k sub-limits and/or add a first-party reputational-harm trigger so costs are available before a third-party claim is made.
Underwriting risk	Nil for the standard cover; Medium for any first-party trigger / limit uplift.
Legal sign-off required	No for positioning; Yes for any uplift.

Personal Accident vs Personal Assault — explicit distinction: Personal Accident — NOT being added (no standalone PA / business-travel section is introduced in this round). Personal Assault — EXISTING and RETAINED. Section 8 (Money), Sub-Section 2 provides Personal Assault benefits (death / permanent total disablement / temporary disablement / medical expenses) to an Insured Person assaulted in connection with an insured Money event. This is a distinct, narrower, benefit-based cover and is NOT the same as a Personal Accident section.

Positioning statements (subject to sign-off)

- 'The only media & entertainment wording in the peer group with all fifteen sections.'
- 'Standalone cyber, legal expenses, management liability, loss of licence and production indemnity — built in, not bolt-ons.'
- 'Reputation management and withdrawal-of-content cover as standard in media liability.'
- 'Flexible first-loss business-interruption limit — one Schedule limit across multiple loss heads.'
- 'Worldwide property & equipment and worldwide transit as standard; worldwide media-liability available as a rated option.'

Positioning: Where competitor wordings are attached (Tysers, Yutree, Liberty, Allianz, AXA XL), these statements are evidenced by the comparison. Any statement that depends on a competitor wording NOT in file is labelled UNCONFIRMED in the Full Coverage Comparison.

Section 12 (Media Liability) — Suggested Upgrades (for sign-off)

These are NOT applied to the wording — not even as tracked changes. Each is presented as a suggested upgrade requiring TMHCC legal/underwriting sign-off. None is final.

Worldwide Territory & Jurisdiction (Optional) — incl. separate USA/Canada selectable

Amendment type	Schedule-selectable option (territory/jurisdiction)
Exact location for insertion	Section 12 (Media Liability), as an Optional Extension following the 'Legal Action' / 'Geographical Limits' exclusions (p.73+).
Copy-paste-ready upgrade wording	Worldwide Territory and Jurisdiction (Optional) This Optional Extension applies only if stated as operative in the Schedule. Where stated as operative, the Geographical Limits applicable to this Section are amended to anywhere in the world and the Jurisdiction applicable to this Section is amended to worldwide, and the exclusions of claims brought, or in which the governing law is contended to be, outside the Jurisdiction shall not apply. Cover in respect of claims brought in, or determined under the laws of, the United States of America or Canada (or any territory or protectorate thereof) applies only if "USA/Canada Jurisdiction" is additionally stated as operative in the Schedule.
Rationale & competitor support	Gap 2. Tysers PI is worldwide. Gives global-distribution media clients a clean Schedule switch to worldwide and a separate, rated USA/Canada option, without changing the default ex-US/Canada appetite.
Sign-off note	Legal + underwriting (territory, reinsurance treaty, rating). — REQUIRED before adoption; do not treat as final.

Criminal & Regulatory Defence Costs — clarification / optional sub-limit

Amendment type	Clarification (cross-reference) + optional new cover
Exact location for insertion	Section 12 — either a new sub-limited extension, or a cross-reference note after the Defence Costs provisions (p.73+).
Copy-paste-ready upgrade wording	Criminal and Regulatory Defence Costs (Clarification / Optional) — For the avoidance of doubt, the defence of statutory, regulatory or criminal proceedings arising from the Business (other than the Data Protection defence costs expressly provided in this Section) is addressed under Section 13 (Commercial Legal Expenses) and Section 14 (Management Liability). Where stated as operative in the Schedule, this Section will in addition indemnify the Insured for defence costs incurred with the Insurer's prior written consent up to GBP [] in respect of such proceedings.
Rationale & competitor support	Tysers statutory defence GBP 1m; Yutree criminal-defence GBP 250k. On a Section-12-only read TMHCC looks narrower; the cross-reference to S13/S14 removes the apparent gap at nil cost.
Sign-off note	Legal + underwriting (confirm S13/S14 triggers; any S12 sub-limit). — REQUIRED before adoption; do not treat as final.

Distributors & Purchasers Extension

Amendment type	New optional cover (extension)
Exact location for insertion	Section 12, new Optional Extension within the Extensions block (p.73+).
Copy-paste-ready upgrade wording	Distributors and Purchasers (Optional) — The indemnity provided by this Section extends to any distributor, licensee, co-producer or purchaser of the Insured's media material for their liability arising from that material, provided that: (a) the Insurer's total liability for all such parties shall not exceed the multiple of the Limit of Liability stated in the Schedule; (b) the claim is first made within 36 months of the relevant supply; and (c) the Insurer retains control of the defence and settlement of any such claim.
Rationale & competitor support	Tysers cl. 8.7 (up to 5x limit). Protects the distribution chain of production/distribution clients.
Sign-off note	Legal + underwriting (aggregate multiple; control of defence). — REQUIRED before adoption; do not treat as final.

Journalistic Source Protection Costs

Amendment type	New optional sub-limited cover
Exact location for insertion	Section 12, new sub-limited Optional Extension (p.73+).

Indicative wording comparison — broking reference only. Refer to the full policy wordings. Subject to TMHCC legal/underwriting sign-off.

insertion	
Copy-paste-ready upgrade wording	Journalistic Source Protection Costs (Optional) — The Insurer will pay, up to the sub-limit stated in the Schedule, legal costs reasonably incurred with the Insurer's prior written consent in resisting any subpoena, application or court order that would require the Insured to disclose a confidential journalistic source, provided there are reasonable prospects of successfully resisting such disclosure.
Rationale & competitor support	Tysers cl. 8.13. Broker-sensitive for editorial/news/publishing clients; low frequency.
Sign-off note	Legal + underwriting (sub-limit; prospects test). — REQUIRED before adoption; do not treat as final.

Representation Costs at Investigations & Inquiries (GBP 25k)

Amendment type	New optional sub-limited cover
Exact location for insertion	Section 12, new sub-limited Optional Extension (p.73+).
Copy-paste-ready upgrade wording	Representation Costs at Investigations and Inquiries (Optional) — The Insurer will pay, up to GBP 25,000 in the aggregate, the reasonable costs of legal representation incurred with the Insurer's prior written consent at any official examination, investigation or inquiry into a matter that could give rise to a claim under this Section.
Rationale & competitor support	Tysers cl. 8.15 (GBP 25k). Useful for advertising/marketing clients (ASA/CMA investigations).
Sign-off note	Legal + underwriting (sub-limit; align with S13/S14). — REQUIRED before adoption; do not treat as final.

Professional-Duty Write-back (Asbestos / Pollution) — negligent advice only

Amendment type	Exclusion write-back (narrow)
Exact location for insertion	Section 12 — narrow write-back to the asbestos/pollution exclusions (p.73+).
Copy-paste-ready upgrade wording	Professional Duty Write-back (Asbestos / Pollution) (Optional) — Notwithstanding the asbestos and pollution exclusions of this Section, the Insurer will indemnify the Insured, up to the sub-limit stated in the Schedule, for liability arising solely from negligent professional advice, design or specification in connection with asbestos or pollution, but excluding any liability for bodily injury and any liability for the cost of the contamination, remediation or clean-up itself.
Rationale & competitor support	Tysers asbestos professional-duty write-back (GBP 1m, ex-BI); Yutree pollution write-back for own negligence. Closes a genuine E&O gap WITHOUT taking environmental/contamination risk.
Sign-off note	Legal + underwriting (must keep BI and contamination/clean-up excluded; tight cap). — REQUIRED before adoption; do not treat as final.

King's Counsel Determination clause

Amendment type	Condition amendment (dispute resolution)
Exact location for insertion	Section 12 — within the Defence and Settlement / dispute provisions (p.73+).
Copy-paste-ready upgrade wording	King's Counsel Determination (Optional) — If the Insured and the Insurer disagree as to whether any claim should be contested, the dispute shall be referred to a King's Counsel to be mutually agreed (or, failing agreement, nominated by the President of the Bar Council), whose determination shall be binding. The costs of the reference shall be at the discretion of the King's Counsel.
Rationale & competitor support	Yutree KC clause. Gives clients certainty on defence/settlement disputes; procedural, low risk.
Sign-off note	Legal (cost-allocation wording). — REQUIRED before adoption; do not treat as final.

'Media Material' definition

Amendment type	Definition amendment
Exact location for insertion	General Definitions or Section 12 Definitions (p.73+).
Copy-paste-ready upgrade wording	Media Material (Definition) — 'Media Material means any data, text, sounds, images, advertising, film, video, audio, broadcast, publication, website or other content created, produced, published, distributed, broadcast or disseminated by or on behalf of the Insured in the

	course of the Business.'
Rationale & competitor support	Tysers defines 'Media Material'. Sharpens the subject-matter of Section 12 cover; drafting clarity only.
Sign-off note	Legal (drafting polish). — REQUIRED before adoption; do not treat as final.

Reputation Management / Withdrawal of Content — optional uplift

Amendment type	Limit uplift / optional trigger amendment
Exact location for insertion	Section 12 — existing 'Reputation Management' and 'Withdrawal of Content' clauses (p.73+).
Copy-paste-ready upgrade wording	(Optional uplift) — The Reputation Management and Withdrawal of Content sub-limits stated in this Section (each GBP 250,000) may, where stated in the Schedule, be increased; and/or a first-party reputational-harm trigger may be added so that reputation-management costs are available following an insured event even where no third-party claim has yet been made.
Rationale & competitor support	TMHCC ALREADY provides Reputation Management (GBP 250k) and Withdrawal of Content (GBP 250k) — matching Yutree's reputation-management/withdrawal covers. This is an optional positioning uplift only, not new cover.
Sign-off note	Legal + underwriting (limit/trigger change). — REQUIRED before adoption; do not treat as final.

Section 12 control: All Section 12 Media Liability amendments require legal/underwriting sign-off and are held here only. They do not appear in the tracked-changes wording or the clean final wording.

10 Underwriting risk assessment

Recommendation	UW risk	Control / stance	Verdict
Personal Accident & Business Travel	Medium	Benefit schedule, age limits, hazardous-activity carve-outs	Adopt (capacity-permitting)
Worldwide / US-Canada PI option	High (if US/Canada)	Rated option, sub-limit, higher excess, defence caps; keep ex-US/Canada default	Adopt as option only
Distributors & purchasers	Medium	36-month window, certificate, control of defence, capped aggregate	Adopt with controls
Criminal-defence clarity / cross-ref	Low	Cross-reference to S13/S14; small S12 sub-limit	Adopt
Source-protection costs	Low	Small sub-limit; prospects test; consent	Adopt
Representation costs	Low	GBP 25k sub-limit	Adopt
Asbestos / pollution PI write-back	Medium	Negligent-advice only; exclude BI & contamination; tight cap	Adopt narrowly
Patents	High	Systemic severity	Leave excluded (defence-costs only at most)
Communicable disease / US-Canada default	High	Retain broad exclusion / default territory	Leave unchanged

11 Implementation roadmap

Phase 1 — Clarifications (nil / low cost)

- Cross-reference criminal/regulatory defence to S13/S14.
- Signpost computer/IT breakdown within S1/S2.
- Name ICOW/AICOW and book-debts heads expressly in S3.
- Add 'Media Material' definition; align cyber definitions.

Phase 2 — Sub-limited extensions (low risk)

- Add representation-costs (GBP 25k) and source-protection costs to S12.
- Adopt the King's Counsel dispute-resolution clause.
- Confirm explicit loss-of-documents sub-limit.

Phase 3 — Rated options & new cover (priced)

- Add Personal Accident & Business Travel option.
- Add rated worldwide / US-Canada PI territory option.
- Add Distributors & Purchasers extension with capped aggregate.
- Consider narrow asbestos / pollution negligent-advice write-backs.

Phase 4 — Document deliberate restrictions

- Record the rationale for retaining the patent, communicable-disease and default US/Canada exclusions.
- Re-issue the comparison if any competitor updates its wording or a further competitor is added.

12 Legal / underwriting sign-off notes

- All recommendations are commercial proposals and require TMHCC legal and underwriting approval before adoption.
- Any write-back must be drafted to preserve the existing exclusion's intent (especially bodily injury, contamination and systemic risk).
- Rated options (PA, worldwide/US-Canada, distributors) require pricing, reinsurance-treaty and capacity confirmation.
- Confirm freelancer/contractor and 'insured' definitions remain consistent across all amended sections.
- No cover has been invented in this strategy; every item is supported by at least one competitor wording cited above.
- All five competitor wordings (incl. AXA XL) are incorporated; revisit priorities if any competitor wording is updated.

End of Gap-Fill / Wording Enhancement Strategy.